

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, RAWALPINDI BENCH
JUDICIAL DEPARTMENT

. C.R.No.917-D-2012

Mst. Roshan Ara Begum etc Vs. Mohammad Banaras etc

Sr.No.of Order/ Proceeding.	Date of Order/ Proceeding.	Order with signatures of Judge and that of parties or counsel, where necessary.
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12.01.2015. Mr. Haroon Arshad Janjua, Advocate for
petitioners.

Resume of facts, forming
background of instant petition is that the
petitioners/plaintiffs filed a suit for
declaration alongwith possession
contending that petitioners' predecessor in
interest namely Ashraf Ali Khan, was
owner of land measuring 13-Kanals and
16-Marlas, bearing khasra No.6872/3616.
One shop which was constructed by Ashraf
Ali Khan from his own resources was
rented out to respondent No.1. On
26.07.2001, a sale deed with respect to the
disputed shop was secretly executed
between respondent No.1 & respondent
No.2/paternal aunt against the terms of
tenancy agreement and the respondent
No.1 started claiming ownership of the
disputed shop illegally and unlawfully. On

the other hand, respondent No.1 controverted the contents of the plaint by filing written statement. Learned trial court dismissed the suit vide judgment and decree dated 25.10.2010. Petitioners filed appeal against the said judgment and decree which was also dismissed, vide judgment and decree dated 21.11.2011, hence, this revision petition.

2. Learned counsel for the petitioners submits that both the learned courts below have committed misreading and non-reading of material evidence with respect to the ownership of shop and existence of relationship of tenant and landlord between petitioners and respondent No.1. Both the learned courts below ignored the crucial facts and fell in error while deciding the matter, therefore, the impugned judgments and decrees are not sustainable in the eye of law, hence, the same are liable to be set-aside.

3. Arguments heard. Record perused.

4. To prove their case before the learned trial court, only petitioner No.8 appeared as PW-1 but during cross-

examination he tried to improve the case of petitioners by stating that his grandfather namely Yousaf Ali Khan was the owner of land measuring 13-Kanals and 16-Marlas, bearing khasra No.6872/3616. His grandfather gifted property measuring 04-Kanals and 09-Marlas to his father/ Ashraf Ali Khan and shops were constructed on the gifted land. Although he denied that each of his paternal aunt was given one shop but admitted the sale of four shops each by his four paternal aunts alongwith vacant land. He also admitted that no suit was filed against other paternal aunts. The petitioners claimed that they were/are owners of disputed property gifted to their father but failed to prove the gift and their exclusive ownership before the learned courts below through documentary as well as oral evidence.

5. On the other hand, only respondent No.1 appeared as DW-1 and proved his ownership as well as his possession by producing the registered sale deed properly executed between him and respondent No.2. Petitioners filed an ejectment petition

under section 13 of the West Pakistan Urban Rent Restriction Ordinance against the respondent No.1, which was dismissed on 30.09.2003 and appeal filed there against also met the same fate.

6. Learned lower appellate court has rightly held that respondent No.1 purchased the disputed shop from a co-sharer / paternal aunt. Hence, he also became a co-sharer in the joint property. Furthermore, it is established law that a co-sharer cannot file a suit for declaration and possession against the other co-sharer but a suit for partition can only be filed. The Hon'ble Supreme Court of Pakistan in a case reported as **Mst. Sanobar Sultan and others Vs Obaidullah Khan and others** (PLD 2009 S.C.71) has held as under:

“A purchaser of a share out of a joint property having become a co-owner, his status as a tenant ceases and his possession will become that of a co-owner who falls within the definition of a landlord. A co-sharer is entitled to retain the possession of the joint property till partition.”

7. Learned counsel for the petitioners has failed to point out any misreading or non-reading of material evidence warranting interference by this Court in the concurrent findings given by both the learned courts below. The Hon'ble Apex Court in a case reported as **Abdul Qadoos through L.Rs Vs Habibur Rehman and others** (2010 SCMR 52) has held that:

“In a case of concurrent findings by courts below this Court normally does not interfere unless it can be shown that the finding is on the face of it against the evidence or so patently improbable or perverse that to accept it could amount to perpetuating a grave miscarriage of justice or if there has been any misapplication of principle relating to appreciation of evidence or finally, if the finding could be demonstrated to be physical impossible. Misreading and non-reading of evidence is established.”

8. In the present case, no such defects have been pointed out by the learned counsel for petitioners in order to seek interference by this Court. Learned courts below have meticulously examined the entire evidence of the parties and thereafter

reached at the conclusion regarding the controversy. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned judgments passed by the learned courts below. Therefore, this petition is **dismissed in limine.**

(MASUD ABID NAQVI)
JUDGE

Approved for reporting

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